

9. S-PR-0013869 In Re the Fam Trust of Don V Prisk & Sherrie N Prisk

Appearance is required for continued hearing on petition to determine trust property, for accounting, to suspend and remove trustee, and for other relief.

10. S-PR-0013971 In Re the Estate of Field, Jonathan Wayne

Missing sufficient notice of hearing for amended petition to administer estate. Notice of hearing as filed, served, and published erroneously states that the petition requests the appointment of Christine Field as personal representative. See notice at ¶ 3. In fact, the petition requests the appointment of Heather Geldart as personal representative.

Note: missing signed Duties form (DE-147). The origin of the document filed May 26 is unknown to the court, but it is not mandatory Judicial Council form DE-147. The clerk cannot issue letters until the required Duties form is filed. C.R.C. 7.150.

11. S-PR-0014040 In Re the Davis Family Trust Survivor Trust

Appearance is required for hearing on petition to appoint successor trustee. Missing waiver(s) of bond referred to in the petition other than nomination and waiver filed by University of British Columbia.

12. S-PR-0014041 In Re the Donna Beth Foley 2014 Rev Trust

Petition to determine trust property is recommended for approval as prayed.

Note: trust proceedings to determine trust property were previously filed as action no. S-PR-0011407. It is unclear why petitioner filed this matter as a separate action.

13. S-PR-0014042 In Re the Hardy Fam Trust

Petition to determine trust property is recommended for approval in part, as follows:

The petition prays for a determination that the entirety of the Flick Street property be determined to be a trust asset. See Prayer, ¶ 1.

The petition should be granted as to the 1/100 share of the subject real property with current record title in the name of settlor Susan Hardy. The petition adequately establishes a factual and legal basis for relief under Prob.C. § 850 and *Heggstad*.

The petition should be denied as to the 99/100 share of the subject real property with current record title in the name of petitioner. The petition offers no factual or legal basis to determine that petitioner's 99/100 share is a trust asset. To the contrary, the petition establishes that record title to the 99/100 share was funded to the trust during